

Court No. - 3

Case :- WRIT - C No. - 21724 of 2022

Petitioner :- Ajaj Ahmad

Respondent :- State Of U P And 6 Others

Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- CSC, Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and the learned counsel for the respondent Nos.3 and 4.

Sri Chetan Chatterjee, learned counsel for the respondent Nos.3 and 4 has raised preliminary objection as to maintainability of the writ petition on the ground that against the impugned order dated 22.06.2022 passed by the respondent No.4 under Para-6.8 of the U.P. Electricity Supply Code, 2005, the petitioner has remedy of appeal under Section 127 of the Electricity Act, 2003.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is dismissed** on the ground of alternative remedy of appeal under Section 127 of the Electricity Act, 2003. The liberty is granted to the petitioner to file an appeal. If such an appeal is filed within three weeks from today along with certified copy of this order, it shall be entertained by the appellate authority without raising any objection as to the limitation.

Order Date :- 2.8.2022

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